

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

1. SHYLO RAE BELL V. CHRISTOPHER DWAIN LOVELESS

22FL0232

On March 25, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served electronically on March 30th.

Only Petitioner appeared at Child Custody Recommending Counseling (CCRC) on May 1, 2026, therefore a single parent report was prepared without recommendations.

Petitioner filed a reply declaration on June 12, 2026.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, it appears the RFO and the CCRC referral were both timely and properly served on Respondent. He had notice of the pending requests and the CCRC appointment and chose not to appear at CCRC nor file an opposition to the RFO. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner is requesting sole legal and sole physical custody of the minor child. She asks the court to vacate its prior orders wherein Respondent was granted phone calls with the minor every other week. In her reply declaration, Petitioner adds several additional requests as follows. She asks that she be permitted to discontinue use of the Talking Parents App. She further asks that Respondent be ordered to reimburse Petitioner the cost of the Talking Parents App for the months of October 2025 through June 2026 which amounts to \$255. Finally, she asks that the minor’s name be changed from Harley Bell-Loveless to Harley Lynn Bell.

The requests for sole legal and sole physical custody are granted. The court vacates its prior order for bi-weekly calls between the minor and Respondent.

Regarding the requests for reimbursement of Talking Parents fees, terminating the Talking Parents subscription and changing the minor’s name, the court finds these requests to be outside the scope of the original RFO; therefore, they are not properly before the court and the court declines to rule on them.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #1: THE REQUESTS FOR SOLE LEGAL AND SOLE PHYSICAL CUSTODY ARE GRANTED. THE COURT VACATES ITS PRIOR ORDER FOR BI-WEEKLY CALLS BETWEEN THE MINOR AND RESPONDENT.

REGARDING THE REQUESTS FOR REIMBURSEMENT OF TALKING PARENTS FEES, TERMINATING THE TALKING PARENTS SUBSCRIPTION AND CHANGING THE MINOR'S NAME, THE COURT FINDS THESE REQUESTS TO BE OUTSIDE THE SCOPE OF THE ORIGINAL RFO; THEREFORE THEY ARE NOT PROPERLY BEFORE THE COURT AND THE COURT DECLINES TO RULE ON THEM.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.